

August 20, 2026

HON. CITY COUNCILOR EDGAR CABANLAS

Chairperson

Committee on Subdivision, Housing Development and Land Estate
Cagayan de Oro City

*Letter
includes in
an agenda
on Estate*

Republic of the Philippines
OFFICE OF THE CITY COUNCIL
City of Cagayan de Oro

RECEIVED

Date: **SEP 02 2026**

Time: **2:10**

By: **JUSTIN KYLE P. ASNE**
Local Legislative Staff Officer I

Dear Councilor Cabanlas:

Maayong Adlaw!

This letter respectfully pertains to the fencing permit issued for the property of the late Cristita Tayanes, with an area of approximately 2,621 square meters, located at Sto. Niño St., Zone 10, Bulua, Cagayan de Oro City, represented by Mr. Basilio Ponce.

During an ocular inspection conducted with the barangay representative, it was observed that:

1. There is an existing roadway/pathway traversing the subject property which has long been used by residents as an access road;
2. There are twenty-six (26) families residing in the interior portion whose only convenient means of ingress and egress to the main road is through the existing roadway/pathway; and
3. Should the property owner close the existing roadway/pathway, the affected families may be left without adequate and convenient access to and from their residences.

During the barangay mediation, Mr. Basilio Ponce, representing the heirs of the late Cristita Tayanes, together with the affected families, discussed possible solutions to the matter. As a result of the discussion, the heirs agreed to provide a four-meter-wide roadway/pathway up to the edge of their property, subject to certain conditions, namely:

- a. That they be allowed to lease, for a period of two (2) years, the total area covered by the approved survey of the proposed roadway/pathway; and
- b. That the barangay conduct the necessary survey and that the City Engineering Department undertake the development of the roadway/pathway.

However, during the actual survey and cost evaluation, the barangay did not agree to the conditions proposed by the property representative, particularly on the ground that the expenses involved would be substantial and that the improvement would primarily benefit the affected residents.

In view of the foregoing, we sought assistance from the Office of the City Building Official (OBO). We initially requested the cancellation or temporary withholding of the fencing permit on the ground that its implementation could adversely affect the twenty-six (26) families. However, the OBO informed us that the permit had already been approved and could no longer be cancelled, as doing so might expose their office to a legal complaint.

We likewise inquired whether the OBO had verified with the barangay regarding any potential adverse consequences before the issuance of the fencing permit. The OBO informed us that verification had been made through an online result from the barangay, which allegedly indicated that no concern had been raised regarding the matter. The OBO

further advised us that the possible remedies would be through legal mediation or consultation with the Office of the City Mayor.

We subsequently sought the assistance of City Councilor Al P. Legaspi Sr., who advised us to consult the City Planning Office. Upon consultation, the officer-in-charge advised us to explore the possibility of establishing an alternative access route through an adjacent property.

Following this advice, we sought assistance from Ms. Rebecca Apayor, President of the Lot 4310 Occupants Home Owners Association, Inc., regarding the possibility of opening another route that could serve as a roadway/pathway. Ms. Apayor presented the schematic plan of Lot 4310, from which we learned that there remains an undeveloped portion of land in the area that may potentially provide an alternative access route.

Ms. Apayor further informed us that the association likewise intends to develop the roadway in the area. However, the owner of the neighboring property, Mr. Macario Mahusay, has reportedly gated the area, thereby preventing the association from proceeding with its proposed development.

In view of these circumstances, we are humbly seeking the assistance of your good Office in determining and facilitating any lawful remedy that may be available to establish a permanent and legally recognized roadway/pathway for the affected residents.

We respectfully request your assistance in coordinating with the appropriate city offices and concerned parties to determine whether the existing access road may be legally preserved or whether an alternative access route may be established, consistent with applicable laws, ordinances, land-use regulations, and property rights.

We likewise respectfully request that your Office consider facilitating the temporary withholding or suspension of the implementation of the fencing permit, if legally permissible, until an adequate and lawful means of ingress and egress has been established for the twenty-six (26) affected families.

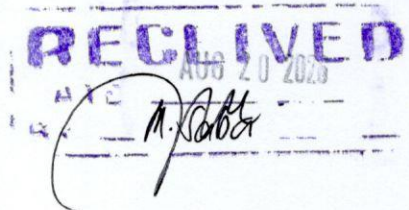
Our primary concern is to ensure that the affected families will not be deprived of reasonable and safe access to their homes. We sincerely hope that your good Office can help us find a lawful, fair, and lasting solution to this matter, which will greatly benefit not only the present residents but also their families and future generations.

We respectfully seek your kind consideration and favorable action on this request.

Thank you very much for your time and assistance. May God bless you and your continued service to the people of Cagayan de Oro City.

Respectfully yours,

The residents of Zone 10-Bulua, CDOC



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